CHAPTER 27 Judicial Review

The doctrine of judicial review originated and developed in the USA. It was propounded for the first time in the famous case of Marbury *versus* Madison (1803) by John Marshall, the then chief justice of the American Supreme Court.

In India, on the other hand, the Constitution itself confers the power of judicial review on the judiciary (both the Supreme Court as well as High Courts). Further, the Supreme Court has declared the power of judicial review as a basic feature of the Constitution or an element of the basic structure of the Constitution. Hence, the power of judicial review cannot be curtailed or excluded even by a constitutional amendment.

MEANING OF JUDICIAL REVIEW

Judicial review is the power of the judiciary to examine the constitutionality of legislative enactments and executive orders of both the Central and State governments. On examination, if they are found to be violative of the Constitution (*ultra vires*), they can be declared as illegal, unconstitutional and invalid (null and void) by the judiciary. Consequently, they cannot be enforced by the Government.

Justice Syed Shah Mohamed Quadri has classified the judicial review into the following three categories[1]:

1. Judicial review of constitutional amendments.
2. Judicial review of legislation of the Parliament and State Legislatures and subordinate legislations.
3. Judicial review of administrative action of the Union and State and authorities under the state.

The Supreme Court used the power of judicial review in various cases, as for example, the *Golaknath case* (1967), the *Bank Nationalisation case*[1a] (1970), the *Privy Purses Abolition* case[1b] (1970), the *Kesavananda Bharati* case (1973), the *Minerva Mills* case (1980), and so on.

In 2015, the Supreme Court declared both the 99th Constitutional Amendment, 2014 and the National Judicial Appointments Commission (NJAC) Act, 2014 as unconstitutional and null and void.[1c]

IMPORTANCE OF JUDICIAL REVIEW

Judicial review is needed for the following reasons:

(a) To uphold the principle of the supremacy of the Constitution.

(b) To maintain federal equilibrium (balance between the Centre and the states).

(c) To protect the Fundamental Rights of the citizens.

In a number of cases, the Supreme Court has pointed out the significance of the power of judicial review in our country. Some of the observations made by it, in this regard, are given below:

"In India it is the Constitution that is supreme and that a statute law to be valid, must be in conformity with the constitutional requirements and it is for the judiciary to decide whether any enactment is constitutional or not".[2]